

IN THE COURT OF COMMON PLEAS
OF KNOX COUNTY, OHIO

- - - - -

State of Ohio ex	:	
rel., Dave Yost, Ohio	:	
Attorney General,	:	
Plaintiff,	:	
vs.	:	Case No. 20IN006-149
	:	Judge James Kimbler
The Landings Property	:	
Owners Association,	:	
Inc., et al.,	:	
Defendants.	:	

- - - - -

DEPOSITION OF ROBERT RAUZI
VIA VIDEOCONFERENCE

- - - - -

Witness located at Residence of Robert Rauzi
7457 Jeffreys Way
Easton, MD 21601
September 7, 2023, 10:08 a.m.

- - - - -

Spectrum Reporting LLC
400 South Fifth Street, Ste. 201
Columbus, Ohio 43215
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A P P E A R A N C E S

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(Via videoconference)
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(Via videoconference)

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(Via videoconference)

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1 A P P E A R A N C E S (CONT'D)

2
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9 ON BEHALF OF THE "QUITCLAIM DEFENDANTS":

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14 (Via videoconference)

15 ON BEHALF OF DEFENDANTS AMY E. BADERTSCHER AND
16 MICHAEL C. REILLY:

17 Zelkowitz, Barry & Cullers, Ltd.
18 103 South Main Street
19 Mount Vernon, OH 43050
20 By Noel B. Alden, Esq.
21 (Via videoconference)

22 ON HIS OWN BEHALF:

23 Nuh Aydin (Via videoconference)
24 5 Longvue Court
 Mount Vernon, OH 43050

25 ALSO PRESENT:

26 Jim Mullins - Representative, Mullins
27 Bros. Ltd. (Via videoconference)
28 Steve Mullins - Representative, Mullins
29 Bros. Ltd. (Via videoconference)

Thursday Morning Session

September 7, 2023, 10:08 a.m.

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S T I P U L A T I O N S

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It is stipulated by counsel in attendance that the deposition of Robert Rauzi, a witness herein, called by Defendant Mullins Bros. Ltd.; Cross-Claim Plaintiff and Cross-Claim Defendant Mullins Bros. Ltd. for cross-examination, may be taken at this time by the notary pursuant to notice and subsequent agreement of counsel, that said deposition may be reduced to writing in stenotypy by the notary, whose notes may thereafter be transcribed out of the presence of the witness; that proof of the official character and qualification of the notary is waived; that the signature of the witness to the transcript of said deposition is expressly waived by counsel and the witness; said deposition to have the same force and effect as though signed by the said Robert Rauzi.

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(Exhibits attached electronically. Hard copies were never in Spectrum's possession.)

1 THE REPORTER: To start us off, would
2 counsel please introduce themselves for the
3 record, state who they represent, state who is in
4 the room with them, and also state their consent
5 to the remote administration of the oath.

6 MS. AMADOR: I'm Kelli Amador. I'm one
7 of the attorneys for Mullins Brothers. I'm alone
8 in a conference room in Cincinnati, Ohio, and I
9 consent to what you just said.

10 MR. KRAVITZ: Hi. This is Brett
11 Kravitz, and also with me in the room is Joe
12 Wambaugh. We're with the Ohio Attorney General's
13 Office, representing the State of Ohio, and we
14 also consent.

15 MR. BROEREN: I'm Rob Broeren. I'm law
16 director for the City of Mount Vernon,
17 representing the City of Mount Vernon. I am alone
18 here in my office in Mount Vernon, and I consent
19 to the recording of video.

20 MR. CHAPPELEAR: I'm Steve Chapplelear,
21 with Eastman & Smith. I am alone in my home
22 office. I represent a number of homeowners in The
23 Landings, who we refer to in a shorthand way as
24 the Long defendants and third-party defendants,

1 and I consent to the remote administration of the
2 oath of the witness.

3 MR. ALDEN: I'm Noel Alden. I
4 represent Amy Badertscher, from Zelkowitz, Barry &
5 Cullers. I'm alone in my office in Mount Vernon,
6 and we consent.

7 MR. LANDON: Adam Landon, on behalf of
8 a number of property owners referred to as the
9 quitclaim defendants. We consent to the remote
10 administration of the deposition.

11 MR. LANE: Ken Lane, representing
12 Michele Lane. In my office in Mount Vernon, and I
13 consent.

14 - - - - -

15 ROBERT RAUZI

16 being first duly sworn, testifies and says as
17 follows:

18 CROSS-EXAMINATION

19 BY MS. AMADOR:

20 Q. All right. Mr. Rauzi, my name is Kelli
21 Amador. I'll introduce myself again. I'm one of
22 the attorneys representing Mullins Brothers in a
23 case titled Ohio versus The Landings Property
24 Association and have a lot more defendants than

1 just that.

2 To get some formalities out of the way,
3 could you state your name and spell it for our
4 court reporter.

5 A. It's Robert Rauzi, spelled R-a-u-z-i.

6 Q. Okay. And where are you right now?

7 A. I am in Easton, Maryland.

8 Q. Okay. And is anyone in the room with
9 you?

10 A. Well, I am alone in the room, but
11 there's no walls separating me from the lower
12 level of the house, where my wife is.

13 Q. I think we're all fine with that. And
14 I know that you were an attorney or -- I believe
15 you said you're retired; is that correct?

16 A. That's correct. I retired in 2014.

17 Q. So I'm sure that you've taken many
18 depositions, but have you ever been deposed
19 before?

20 A. I think one time.

21 Q. Okay. So just to go over the rules in
22 case you don't remember, especially since we're on
23 a videoconference, I need oral answers from you.
24 No "uh-huh," "huh-uh," things like that. No head

1 shakes or gestures. That makes it easier for
2 Craig, our court reporter, to take down your
3 testimony.

4 If I ask you a question you don't
5 understand, please let me know, and I'll try and
6 rephrase so that we reach an understanding. If
7 you answer a question, I will assume you
8 understood it as I asked it.

9 And if you need a break, just ask.
10 This is -- I don't anticipate this taking too
11 long, knock on wood, but I understand if you need
12 to take a break. And if you remember any
13 additional information for a question that I ask
14 you, I would ask that you interrupt me to follow
15 up and let me know.

16 A. I understand.

17 Q. Great. And I also tend to talk a
18 little bit quickly, so if you don't understand me
19 because I'm speaking fast, please let me know.

20 All right. So you are currently
21 retired?

22 A. That's correct.

23 Q. Okay. And when did -- you retired in
24 2014, you just said?

1 A. That's right.

2 Q. And what was your profession prior to
3 retiring?

4 A. I was an attorney.

5 Q. Okay. And how long were you in
6 practice?

7 A. Forty-two years.

8 Q. Where did you mainly practice?

9 A. Mount Vernon, Ohio.

10 Q. And what areas of law did you hold your
11 practice in?

12 A. It was varied over that time period,
13 depending on how old I was and how much energy I
14 had. Toward the end of my practice, it was mainly
15 office practice, but earlier there was some
16 litigation involved.

17 Q. Okay.

18 A. I had a broad-based practice.

19 Q. So you -- did you work in real estate,
20 property?

21 A. Yes. All of those.

22 Q. Okay.

23 A. Estate planning, trusts, some tax
24 planning, business formation. All the things that

1 a small town lawyer does, except --

2 Q. And --

3 A. -- domestic relations and criminal.

4 Q. That's fair. And what practice -- what
5 percentage of your practice would you estimate
6 dealt with incorporation and real estate
7 development?

8 A. Well, it varied of course over the time
9 period that we're talking about, but I would say
10 somewhere in the vicinity of 10 to 15 percent
11 perhaps in the time period we're interested in.

12 Q. But you're familiar with how to
13 incorporate entities?

14 A. Yes.

15 Q. And are you familiar --

16 A. I was then. I don't think it's
17 changed.

18 Q. And you were -- when you were
19 practicing, you were familiar with the processes
20 of law surrounding covenants on real property?

21 A. Yes.

22 Q. Okay. And when you were practicing,
23 did you have malpractice insurance?

24 A. Yes.

1 Q. Do you recall the carrier?

2 A. No. I think it was -- no, I don't.

3 Q. No big deal.

4 So are you familiar with the litigation
5 that we're here to talk about today?

6 A. Somewhat.

7 Q. Okay. So I sent you some exhibits last
8 night, and I would like to go through and identify
9 them.

10 A. All right.

11 Q. And I will share my screen for the rest
12 of our participants as well.

13 A. All right.

14 MS. AMADOR: Okay. Can everybody see
15 Exhibit A-1?

16 MR. KRAVITZ: Yes.

17 MS. AMADOR: I think everyone's
18 nodding.

19 Q. Okay. Mr. Rauzi, do you recognize this
20 document?

21 A. I do.

22 Q. And what is it?

23 A. It's the articles of incorporation of a
24 nonprofit corporation known as The -- I think The

1 Landings. I can't read it, but -- from here, but
2 it's the nonprofit corporation of The Landings
3 Property Owners Association.

4 Q. Okay. And did you prepare this
5 document?

6 A. I did, to the best of my recollection,
7 yes.

8 Q. We'll move on to Exhibit A-2.
9 Do you recognize this document?

10 A. Yes, I do.

11 Q. Okay. And what is it?

12 A. These are the what I call restrictive
13 covenants or restrictions governing Phase VII of
14 The Landing development.

15 Q. We'll move on -- and did you
16 prepare A-2?

17 A. Well, yes and no. This is Phase VII.
18 There were six prior phases. These were the same
19 restrictions used in the prior six phases. The
20 only -- there were only a few minor changes as
21 they were reproduced for Phase VII. I think one
22 small change was in the required square footage of
23 construction -- homes constructed, and the other
24 was the paragraph that seems to bring us here

1 today. Otherwise, I think --

2 Q. So --

3 A. -- they were reproduced exactly as they
4 had been used before.

5 Q. So did you prepare the original Phase I
6 of these sets of restrictive covenants?

7 A. No.

8 Q. Do we know who prepared them?

9 A. I believe they were prepared by the
10 attorney for Knox Cattle, who -- the principal of
11 which was Jerry Baker. His firm, I believe, was
12 in Wooster. I'm sure their name appears at the
13 bottom of them.

14 Q. And then let's go to A-3.
15 Do you recognize this document?

16 A. I do.

17 Q. And is this the Phase VIII restriction?

18 A. It is.

19 Q. And does it have the same
20 characteristics, to the best of your knowledge, as
21 Exhibit A-2, the Phase VII restrictions?

22 A. Yes. It should be the same.

23 Q. And then let's go to A-4.

24 Do you recognize this exhibit?

1 A. Yes. It's the quitclaim deed from
2 Mullins Brothers to The Landings Property Owners
3 Association Corporation.

4 Q. Did you prepare this document?

5 A. Yes.

6 Q. So those are all the documents in
7 Exhibit A. We can come back to Exhibit C. But
8 you're familiar with these documents?

9 A. Yes.

10 Q. And you had a hand in preparing
11 Exhibit A-1; is that correct?

12 A. I can't see the designation. Is that
13 the articles of incorporation?

14 Q. Yes, it is.

15 A. Then yes.

16 Q. Okay. And are you aware that there is
17 a discrepancy between the name of the homeowners
18 association in Exhibit A-1 versus the name of the
19 homeowners association in A-2 and A-3?

20 A. I am.

21 Q. And do you know what the difference is
22 between the named homeowners association? And you
23 can --

24 A. Well, I have -- can I look at the

1 documents? I mean, I think we've all seen them.
2 But in the restrictions, the entity is referred to
3 as The Landings Common Area Association, Inc., but
4 the articles have a different name.

5 Q. Okay. And this -- when you drafted A-1
6 or prepared the documents to incorporate, did you
7 intend to name the same homeowners association as
8 present in The Landings restriction?

9 A. Yes.

10 Q. So --

11 A. It should have been --

12 Q. -- if we have --

13 A. It should have been the same.

14 Q. Go ahead.

15 A. No. I'm sorry. I didn't mean to talk
16 over you. There's a delay between when you speak
17 and when I hear it.

18 Q. Totally fine. You said you should have
19 -- there should have been?

20 A. Yeah. They should have --

21 Q. I --

22 A. -- been consistent. They should have
23 been consistent.

24 Q. And do you know why there was a

1 difference between these documents?

2 A. I do not. I have some speculation.
3 This -- if I may. During this period of time, the
4 property was being acquired by Mullins Brothers.
5 We were doing the restrictions. We were doing the
6 articles of incorporation. I think the
7 restrictions may have been done -- or a draft of
8 them earlier, and I don't think we had settled on
9 a name yet. And we put in some likely name in the
10 restrictions.

11 Then later, when the articles of
12 incorporation were prepared, we chose a different
13 name and never went back and changed, if we wanted
14 to, either, the name of -- the name used in the
15 restrictions or the name of the corporation, and
16 it apparently existed that way for some years.

17 Q. When did the difference in the name
18 come to your attention?

19 A. Recently. I don't recall the exact
20 date, but not for some long period of time.

21 Q. Okay. But just to clarify that while
22 there may be a difference in the name between the
23 restrictions and the incorporation documents, you
24 intended to name the same homeowners association?

1 A. That is correct, yes.

2 Q. Are you familiar with Exhibit C?

3 A. Yes. But not deeply familiar. I only
4 saw it last night and skimmed through it once.

5 Q. Okay. And Exhibit C is the journal
6 entry as to the motion for summary judgment that
7 Mullins Brothers filed. And this was denied by
8 the Court, and one of the main reasons was the
9 unknown of whether or not the difference between
10 the homeowners association was intentional or was
11 merely an error.

12 Based on your personal knowledge of
13 this situation and your hand in drafting the
14 articles of incorporation, you believe that the
15 difference between the listed homeowners
16 association is an error?

17 A. Yes, I do.

18 Q. And then I know that you had a little
19 bit of involvement with The Landings beyond just
20 drafting these documents. Did you ever own
21 property within The Landings development?

22 A. I did. I had a vacant lot and a home.

23 Q. And were you a member of any homeowners
24 association affiliated with that ownership?

1 A. I don't think I got a certificate that
2 said I was a member, but I thought I was a member
3 automatically by being a property owner.

4 Q. Did you pay any dues?

5 A. You know, I don't know. I have some
6 memory of dues generally being collected. I don't
7 recall whether I ever paid any for the following
8 reason. I know in the initial sale of lots -- and
9 our office was involved in some of them -- that we
10 collected at closing the \$200 referred to in the
11 restrictions.

12 Later on, I got communication from the
13 property owners association when I was a property
14 owner saying that they no longer -- or for that
15 year or for a few years had elected not to collect
16 that money on an annual basis. I don't know for
17 sure why, except that apparently they didn't need
18 it. I think that communication came from the CPA
19 firm of Nelson & Nelson, who was doing work for
20 the property owners association.

21 Q. Okay. But when you did pay -- they did
22 collect dues at closing when you got the property?

23 A. I don't recall if they did from me,
24 though I know, in the early stages of selling in

1 Phase VII and those closings that we were involved
2 in, the money was collected.

3 Q. To the best of your knowledge, was the
4 homeowners association functional?

5 A. Oh, yes.

6 Q. To your --

7 A. I think so. I mean, yeah, we got
8 notices of meetings, and there were meetings. And
9 they had officers, and I think the president of
10 the association lived down the street from me for
11 a while, so yes. They were functioning.

12 Q. Do you know approximately when they
13 stopped functioning?

14 A. No, I don't.

15 Q. Do you --

16 A. I think I sold my house and moved in
17 2017. And I don't know anything since 2017. They
18 -- I think they were --

19 Q. Do you believe --

20 A. -- functional then, but I'm not sure.

21 Q. Okay. Do you believe that they were
22 functioning beyond 2007?

23 A. Oh, yes. I think so, yeah. Because, I
24 mean -- they were functioning when I lived there,

1 which was roughly 2014 or '13 to 2017.

2 Q. I'm looking at Exhibit 4. Can you
3 confirm the date that Mullins Brothers used a
4 quitclaim deed to transfer the property?

5 A. Yes. It was July of 2007.

6 Q. I think I just have one more for you.
7 Do you -- well, a few more. So you believe --
8 based on your knowledge and experience as an
9 attorney and as the attorney involved in preparing
10 these documents, do you think it's accurate to say
11 that the difference between the homeowners
12 association names is a scrivener's error?

13 A. Yes, I do so believe.

14 Q. And in your mind, does Mullins Brothers
15 have any liability for the dam assessed after it
16 transferred the property in 2007?

17 A. Well, that's -- you can -- this is my
18 opinion, for whatever it's worth. The answer's
19 no.

20 MS. AMADOR: All right. I don't have
21 any more questions for you, but I can't speak for
22 the other gentlemen on our line.

23 MR. KRAVITZ: I do have a question or
24 two, if no one else has any questions. This is

1 Brett Kravitz, for the State of Ohio.

2 - - - - -

3 CROSS-EXAMINATION

4 BY MR. KRAVITZ:

5 Q. All right. Mr. Rauzi, are you aware of
6 any steps taken by Mullins Brothers to require lot
7 owners to join The Landings Property Association?

8 A. Well, I think, as I said earlier, it
9 was my thinking that you became a member when you
10 became an owner and that there weren't any overt
11 steps you had to take to become a member.

12 Q. So your understanding is that there
13 were no -- other than by someone owning the
14 property by itself you thought made them a member?
15 That was your understanding?

16 A. Yes, that's my understanding.

17 Q. Okay. And so there were no other
18 actions taken to make sure that people stayed
19 members once they became members?

20 A. Not that I'm aware of.

21 Q. And you said you lived in The Landings
22 Property Development. Did you live in Phase --
23 was that Phase VII?

24 A. Yes.

1 Q. Okay. And you're -- and you are a
2 retired attorney? Is that what -- is that what
3 you testified earlier?

4 A. Yes.

5 Q. Okay. So you can't give any current
6 legal opinions practically, since you are a
7 retired attorney. Isn't that correct?

8 A. Well, I have lots of opinions as --
9 MS. AMADOR: Object.

10 A. -- as an attorney and as an individual.

11 Q. Yeah. But you can give -- yeah. You
12 can give a lay opinion, but my question is: Can
13 you give a legal opinion in the state of Ohio,
14 given that you are a retired attorney and don't
15 have license?

16 MS. AMADOR: Objection.

17 A. I think I'm qualified to give a legal
18 opinion with respect to the time period when I was
19 a practicing lawyer and prepared the documents.
20 If laws have changed substantially since then, I
21 don't think I'm qualified to give an opinion today
22 under current Ohio law.

23 MR. KRAVITZ: All right. Just a second
24 here.

1 (A discussion is held off the record.)

2 MR. KRAVITZ: I think that's all I have
3 for you today. I don't know if anybody else has
4 any other questions.

5 All right. Go ahead, Steve.

6 MR. CHAPPELEAR: Thank you.

7 - - - - -

8 CROSS-EXAMINATION

9 BY MR. CHAPPELEAR:

10 Q. Mr. Rauzi, hi. My name is Steve
11 Chappelear. I'm an attorney in Columbus. As I
12 indicated at the outset, I represent some of the
13 landowners in Phases VII and VIII of The Landings.

14 You mentioned that you're sitting in
15 Eaton, Maryland right now. What is your home
16 address?

17 A. First of all, it's actually Easton,
18 like E-a-s-t-o-n.

19 Q. Thank you.

20 A. And it's 7457 Jeffreys,
21 J-e-f-f-r-e-y-s -- Jeffreys Way.

22 Q. How long have you lived there?

23 A. Since the fall of 2017.

24 Q. What was your address when you lived in

1 The Landings?

2 A. It's funny how those things disappear
3 from your head, but I believe it was 34 Wildwood
4 Lane West. I'm sure it was Wildwood Lane West;
5 I'm just not sure the number. I was three doors
6 away from Attorney Ken Lane, who should be
7 listening in, and he might be able to correct me.

8 Q. You grew up in Mansfield, right?

9 A. Well, I was born in Mansfield, and I
10 lived in Mansfield until I was in the fourth
11 grade, and then I moved to a nearby community
12 called Ontario, Ohio.

13 Q. All right.

14 A. I was there until I left for college.

15 Q. And you went to college at Oberlin?

16 A. I did.

17 Q. You graduated in 1966?

18 A. Correct.

19 Q. And then you graduated from the OSU
20 College of Law, right?

21 A. Yes. In 1971 or early '72.

22 Q. Did you have any military service in
23 there?

24 A. Between graduation from Oberlin College

1 and going to law school, I spent 30 months in the
2 U.S. Navy on an aircraft carrier in Pensacola --
3 out of Pensacola, Florida.

4 Q. All right. When you practiced law, did
5 you begin in 1972?

6 A. I was licensed in May of '72. I had
7 begun employment with the law firm of Zelkowitz,
8 Barry & Cullers in September of '71 doing nonlegal
9 stuff, abstracting, title searches, and other
10 things like that, running papers until I was
11 licensed to practice.

12 Q. When did you first take the bar exam?

13 A. I'm not -- you know, it's been a long
14 time ago, but I think -- I accelerated through law
15 school. So I think that bar exam is given in
16 February. I took it in the -- you know, in -- I
17 think February, yeah, of '72.

18 Q. How long did you work with the
19 Zelkowitz, Barry & Cullers law firm?

20 A. Thirty-two years.

21 Q. And then did you establish a firm with
22 Mr. Murray?

23 A. Well, I did practice with Mr. Murray
24 under the firm name of Murray & Rauzi, but,

1 essentially, we shared space.

2 Q. Could you tell me what years that was?

3 A. Probably 2004 until 2014.

4 Q. And did the name of the firm change at
5 one point in there to Murray, Rauzi & Kidwell?

6 A. It did, yes. I don't remember the
7 year, but it was around 2006 or '7, somewhere in
8 that range.

9 Q. And that's when Mr. Kidwell became a
10 partner in the firm?

11 A. That's correct.

12 Q. Was that still an office sharing
13 arrangement or was that a partnership?

14 A. Well, I don't -- you know, he started
15 as an associate and was on salary, but then the
16 arrangement changed. But I never felt that we
17 actually had a revenue-sharing partnership.

18 Q. You were asked earlier about
19 malpractice insurance. Has anyone informed you of
20 a claim or potential claim for malpractice related
21 to the documents that you were reviewing earlier
22 in this deposition?

23 A. No.

24 Q. Could you tell me what you've done to

1 prepare for this deposition today.

2 A. A week or so -- well, let me back up,
3 if I may.

4 I first received information that my
5 deposition was requested sometime in the early
6 spring or late winter when I was in Arizona. I
7 didn't do anything at that time because it wasn't
8 scheduled and it wasn't clear whether it was going
9 to happen.

10 Then more recently, when I heard from
11 Ms. Amador, I went online and downloaded and
12 printed off the restrictions that are issue -- at
13 issue here and maybe the deed to the property
14 owners association. Then I got an email last
15 evening from Ms. Amador giving me the five
16 exhibits or so that she was interested in. And so
17 there were a couple of new ones there that I
18 hadn't looked at. So that's what I did to prepare
19 for this deposition.

20 Q. Who did you talk with concerning your
21 deposition last winter or spring?

22 A. You know, I don't remember her name. I
23 could find it because it's in an email. Because I
24 think when I was contacted most recently, there

1 was a reference to an earlier email I had received
2 and reference that that attorney, I think female,
3 was no longer with that firm, and I -- there was
4 new counsel on this case.

5 Q. Was that attorney Nita Hanson?

6 A. That sounds familiar, yeah.

7 Q. Okay.

8 A. That could very well be it.

9 Q. What did you discuss with Ms. Hanson?

10 A. Well, I don't remember any detail.
11 Just that this -- there was an issue about whether
12 or not the difference between the names used in
13 the two documents was intentional or an error and
14 that they wanted to take a deposition to see if
15 that was the case, and that's about it.

16 Q. Was that conversation with Ms. Hanson
17 the first time that you had heard about any issue
18 concerning an alleged difference in names?

19 A. I believe it was, yes.

20 Q. What did she tell you the position was
21 of Mullins Brothers with respect to that issue?

22 A. I'm not sure -- I'm not sure she told
23 me. I think she knew that I represented Mullins
24 Brothers during that period of time and that I had

1 most likely, or if not actually, prepared the
2 documents. But I don't think she ever said
3 anything about what their position was, though it
4 was -- I think it was fairly obvious that it was
5 believed that it was an error. No one would
6 intentionally do that. I mean, I can't see any
7 purpose or benefit or anything for having done
8 that with intent.

9 Q. How many conversations have you had
10 with Ms. Amador before this morning?

11 A. I think none. It was all by email.

12 Q. All right. And did you keep those
13 emails?

14 A. Yes.

15 Q. How many emails were there?

16 A. Oh, I think there weren't more than
17 two, possibly three. I think I -- the early
18 contact was maybe from a paralegal first wanting
19 to get this set up, and then it wasn't until last
20 evening that I think I got the email from Kelli
21 Amador.

22 I also said that I hadn't gotten or I
23 had discarded the link for this deposition. She
24 sent me a new link, plus copies of the documents

1 that -- the exhibits that she was going to deal
2 with today.

3 Q. Now, you mentioned that you had scanned
4 quickly the judgment entry where the judge in our
5 case discussed the Mullins Brothers claim of a
6 scrivener's error, correct?

7 A. Yes.

8 Q. Have you ever, in all of your years of
9 legal practice, ever seen an issue involving an
10 alleged scrivener's error before this?

11 A. I have not. I'm aware of the concept,
12 but it's never been an issue in any -- in any
13 legal cases that I ever had.

14 Q. I think you said in your 42 years of
15 legal practice that you'd represented a number of
16 small business owners, right?

17 A. Yes.

18 Q. And that involves setting up
19 corporations, right?

20 A. Yes.

21 Q. It --

22 A. Limited liability companies,
23 partnerships. All forms of business
24 organizations.

1 Q. Sure. And you did that thousands of
2 times?

3 A. Well, that would be pretty generous.
4 Hundreds, perhaps.

5 Q. All right. You also had a great deal
6 of experience providing real estate closing
7 services, right?

8 A. Yes. We -- I was an owner of a title
9 company, and we did real estate closings.

10 Q. Are you referring to Owl Creek Title
11 Agency?

12 A. Yes. Well, initially, that was at
13 Zelkowitz, Barry & Cullers. We also had -- I
14 don't think I was an owner there of the title
15 agency. But when I began working with Mr. Murray,
16 we had a separate title agency. I can't remember
17 which was which now. It's been a while.

18 Q. What was the name of that title agency?

19 A. Well, that's why I hesitated, because
20 that one may have been Owl Creek. But I can't --
21 I can't speak with a good memory as to that name
22 and who had it.

23 Q. I can --

24 A. I know it --

1 Q. Go ahead.

2 A. I mean, I know it still exists in the
3 law firm that Mr. Kidwell still is a senior
4 partner in. He changed the name to Kidwell,
5 Cunningham and something after a while, and they
6 do have Owl Creek Title Agency. So that --
7 presumably, that was the one that we had at
8 Murray & Rauzi.

9 Q. All right. And how many real estate
10 closings were you involved in during the course of
11 your career?

12 A. Well, that's a little hard to answer
13 because I don't know what you mean by "involved"
14 with. The actual sit-down closing was almost
15 never done by the lawyers. So to that degree, not
16 very many. Being familiar with the closing
17 process and so forth, you know, quite a few.

18 Q. All right. How about deeds, deed
19 preparation? Would you number your deed
20 preparations in the hundreds or thousands? How
21 would you characterize that?

22 A. Well, probably hundreds. Forty-two
23 years, I probably did a hundred or more -- at
24 least a hundred or more a year.

1 Q. Did you take care to be precise and
2 meticulous in your preparation of legal documents?

3 A. Absolutely.

4 Q. And you prided yourself on doing a good
5 quality legal work as you prepared legal
6 documents, right?

7 A. Yes. But I would not be so bold to say
8 that I was perfect in all respects.

9 Q. Is there another instance in
10 your 42-year career where you made an error of the
11 type that we are talking about here in having the
12 completely wrong name for a company?

13 MS. AMADOR: Objection.

14 A. Well, first of all, I don't know that I
15 had the completely wrong name for the company.
16 When you name a company, that's the name of the
17 company, so I'm not sure how you can say that was
18 wrong. It was different from the name used in the
19 restrictions.

20 Q. That's a fair point. Let me rephrase
21 that question. Have you ever, in your 42-year
22 legal career, made an error of this type where, in
23 one document, you had the name of a company, and
24 in an affiliated or related document had the name

1 of a completely different company?

2 A. I have no specific --

3 MS. AMADOR: Objection.

4 A. Oops. I'm sorry. Shall I go ahead?

5 Q. Yes, please.

6 MS. AMADOR: I just said "objection."

7 A. I have no specific memory of that
8 scenario, but over that long a period of time, I'm
9 positive it must have happened. It was never of
10 any consequence, that I recall.

11 Q. You think that you've done this before?

12 A. This, specifically? No. But have I
13 made errors before? You better believe it.

14 Q. Well, let me be clear here what I'm
15 asking you about, sir.

16 A. Uh-huh.

17 Q. I thought I was pretty specific in my
18 question. My question was whether you, in
19 your 42-year legal career, ever made an error
20 where, in one document, you referred to a company,
21 and in an affiliated or related document, you used
22 the name of a completely different company. Did
23 you do that more than once?

24 A. I don't ever recall doing it. I didn't

1 even recall doing it here until just recently.

2 Q. How long did you represent Mullins
3 Brothers?

4 A. You know, I don't know. It was -- I
5 know I had represented them for some few years
6 prior to 2007 and obviously before 2005, and then
7 I think gradually Korey Kidwell became -- started
8 doing more work for them than I did as I slowed my
9 practice down. Over the whole time span, it -- my
10 feeling is, though I don't know for sure,
11 somewhere between five and seven years.

12 Q. When did that start?

13 A. If I knew when I started, I'd know when
14 it ended, and I would be able to give you an
15 answer, but I don't recall that. It was -- keep
16 in mind I didn't start out representing Mullins
17 Brothers. I started out representing Steve
18 Mullins himself on some more personal issues. And
19 then as time went on -- I don't even know if
20 Mullins Brothers existed at the outset of my
21 representation of Steve Mullins. I'm not sure.

22 Q. Well, I may be able to help with that.
23 The Secretary of State's records show that
24 articles of organization were filed for the

1 limited liability company Mullins Brothers Limited
2 on August 7, 2003, and the receipt was sent to the
3 Zelkowitz, Barry & Cullers law firm. Would that
4 indicate to you that your representation began no
5 later than August 7th, 2003?

6 A. Yes.

7 Q. And did you prepare those articles of
8 organization for Mullins Brothers Limited?

9 A. I don't have any specific memory of
10 doing it, but it certainly would make sense that I
11 did.

12 Q. Now, there was a real estate document
13 by which Mullins Brothers obtained the title to
14 the property at issue here. Do you recall that?

15 A. I recall that I looked at it recently,
16 and I probably looked at it prior to its recording
17 back in 2005.

18 Q. That would be the warranty deed from
19 Knox Cattle Company to Mullins Brothers Limited,
20 right?

21 A. Yes.

22 Q. And you mentioned Jerry Baker. Jerry
23 Baker signed this warranty deed as a partner in
24 Knox Cattle Company, an Ohio general partnership,

1 right?

2 A. If that's what it says. I don't -- I
3 don't know what his status was.

4 Q. All right. That's --

5 MS. AMADOR: Objection.

6 Q. It indicates Jerry L. Baker, partner in
7 the general partnership, and then also Jerry
8 L. Baker as president of Compact, Inc., also a
9 partner in --

10 MS. AMADOR: I'll --

11 Q. -- the general partnership, right?

12 MS. AMADOR: I'll object to
13 characterize -- representing the characterization
14 of any documents the witness isn't looking at.

15 MR. CHAPPELEAR: That's fine. I think
16 he said he's already looked at it.

17 Q. Now, that deed --

18 A. I did look at it.

19 Q. You did look at it, right?

20 A. Yes, I did look at it. I didn't pay
21 particular attention to who signed it and in what
22 capacity. I was more interested in when it was
23 signed and the legal descriptions contained in.

24 Q. Right. And you prepared that deed,

1 didn't you?

2 A. Nope. Don't think so.

3 Q. Well, I'm looking at the last page
4 where it says, this instrument prepared by Robert
5 L. Rauzi, lawyer, Murray & Rauzi Limited, 305 East
6 High Street, Mount Vernon, Ohio. Is that what you
7 typically put on documents that you prepare?

8 A. Oh, I -- then I probably prepared it.
9 I didn't deny preparing it. It's just that I
10 wasn't representing Knox Cattle Company, and
11 frequently their own counsel would prepare the
12 deed. Sometimes if we're doing a closing, the
13 closing agent will do all of the -- all of the
14 documents.

15 Q. Is that unusual for the lawyer for the
16 buyer to prepare a deed?

17 A. No, I don't think it's unusual.

18 Q. Why did you prepare this deed?

19 A. I have no recollection of why I was
20 called upon to prepare it, other than his counsel
21 was in, I think, Wooster Ohio, and we were doing
22 the closing, and it was just as easy for us to do
23 it.

24 Q. Could you please look at, in the

1 exhibits, Exhibit A-2, please.

2 A. Well, the copies I have don't have the
3 exhibit numbers on them, because I had printed
4 those off earlier.

5 Q. Sure. This is the declaration for
6 Phase VII.

7 A. Okay. I have that.

8 Q. If you're on the first page, you had
9 indicated here when you prepared this document, in
10 the first line, that there's a defined term
11 "developer," and that was Mullins Brothers
12 Limited, an Ohio limited liability company, right?

13 A. Yes.

14 Q. Now if you could turn to the third
15 page, please. We're at paragraph 4(B). It starts
16 "Developer...."

17 A. Yes, I see it.

18 Q. Can you just read to yourself the first
19 two sentences of that. I'm going to have a couple
20 of questions for you.

21 A. Okay. I've read it.

22 Q. Now, this paragraph begins, Developer,
23 and that's Mullins Brothers Limited, right?

24 A. In this document, it is, yes.

1 Q. Yes. So it says, Mullins Brothers
2 Limited shall require the owners of all lots to
3 become members of a nonprofit corporation known as
4 The Landings Common Area Association, Inc., right?

5 A. Right.

6 Q. And you're the one that put that name
7 in there, The Landings Common Area Association,
8 Inc., right?

9 A. Right.

10 Q. And you prepared this document as the
11 agent of and at the request of Mullins Brothers
12 Limited, right?

13 A. Yes.

14 Q. Now, what steps did Mullins Brothers
15 take to require the owners of all lots in Phase
16 VII of The Landings to become members of a
17 nonprofit corporation known as The Landings Common
18 Area Association, Inc.?

19 A. Well, let me -- let me answer that this
20 way: Have you looked at the restrictions done for
21 the earlier phases of The Landings development?

22 Q. Please answer my question.

23 A. This language that you're referring to
24 is the same language that was used in all earlier

1 phases of The Landings with the name changed. The
2 developer in those cases, which was Knox Cattle
3 Company, required or shall require the owners to
4 become members of -- in that case, the reference
5 was to a noncorporate association for similar
6 purposes.

7 So when this document was prepared, we
8 were tracking the same language that had existed
9 in the prior six phases. And rather than
10 referring to a noncorporate association, we put in
11 -- I put in that name.

12 As I mentioned earlier, I don't think
13 we had settled on a name that we -- what we were
14 going to finally use, but that was the name we
15 were using at that point in time as sort of a
16 placeholder.

17 Now, your question was how -- what did
18 they do to require owners?

19 Q. Yes.

20 A. I would say nothing. You -- my
21 opinion, as I stated earlier, was that you became
22 a member when you owned a lot there.

23 Q. And are you relying upon a particular
24 document to give you that opinion?

1 A. Nope. I'm relying on.

2 Q. What is it that leads you to the
3 opinion that landowners automatically, somehow
4 magically, became members of a homeowners
5 association with no further action required?

6 MS. AMADOR: Objection.

7 A. I have been a member of such in five
8 different homeowners associations, and that's the
9 way it worked in every one of them. It seems to
10 me to be, in my opinion, common knowledge.

11 Q. Did you, as a resident of Phase VII of
12 The Landings, ever receive a dues statement from
13 an entity known as The Landings Common Area
14 Association, Inc.?

15 A. No.

16 Q. Did you, as a lot owner and homeowner
17 in Phase VII of The Landings, ever receive a dues
18 notice from The Landings Property Owners
19 Association, Inc.?

20 A. I think, as I stated earlier, I don't
21 recall that I ever received a bill. I received
22 several communications from that entity about
23 notice of meetings, notice that the annual
24 assessment of dues, whatever term you put to it,

1 would not be paid that year. I attended some
2 meetings of the property owners association. So
3 it was a functioning entity for several years.

4 Q. Now, Mr. Rauzi, let me be clear. I am
5 asking you whether you received any dues notices
6 from an entity known as The Landings Property
7 Owners Association, Inc.

8 MS. AMADOR: Objection. Asked and
9 answered.

10 Q. I understand that you've made a comment
11 now about a homeowners association. That's not my
12 question. My question is whether you ever
13 received a dues notice from an entity known as The
14 Landings Property Owners Association, Inc.

15 A. It's my memory that all of what I said
16 with respect to attending meetings, receiving
17 communications, being told that no dues or funds
18 would be collected came from an entity that I
19 believe was that entity.

20 Q. All right.

21 A. If it's -- if it's different, you can
22 show me something that it's different, but that
23 was my memory.

24 Q. Well, you prepared articles of

1 incorporation for The Landings Property Owners
2 Association, Inc., didn't you?

3 A. Yes.

4 Q. And you filed those with the Ohio
5 Secretary of State, right?

6 A. Yes.

7 Q. Did you prepare a code of regulations
8 for that entity?

9 A. I don't recall if we did or not.

10 Q. Did you prepare any bylaws?

11 A. I mean, normally, we would, but I don't
12 have any specific memory.

13 Q. Now, you and your law firm represented
14 The Landings Property Owners Association, Inc.
15 You formed that entity, and then you were
16 representing that entity, correct?

17 A. No, I don't think that's correct. I
18 formed the entity. I don't know that I ever did
19 anything else by way of legal representation for
20 that entity. If I did, I don't recall it.

21 Q. Were you ever involved in any of the
22 business activities of The Landings Property
23 Owners Association, Inc., other than preparing and
24 filing the articles of incorporation?

1 A. I don't believe so. I don't have any
2 memory of it.

3 Q. What did Mullins Brothers Limited do to
4 require the owners of all lots in the Phase VII
5 and Phase VIII of The Landings to become members
6 of The Landings Property Owners Association, Inc.?

7 A. Well, I thought I've already answered
8 that --

9 MS. AMADOR: Objection. Asked and
10 answered.

11 A. -- maybe twice.

12 Q. I don't believe you have, sir. I asked
13 you that question about a different entity, and
14 that entity was The Landings Common Area
15 Association, Inc.

16 A. Oh.

17 Q. This is a completely different
18 question.

19 MS. AMADOR: Objection.

20 Q. So my question, Mr. Rauzi, is: What,
21 if anything, did Mullins Brothers, Inc. -- excuse
22 me -- Mullins Brothers Limited do to require the
23 owners of all lots in Phases VII and VIII of The
24 Landings to become members of a nonprofit

1 corporation known as The Landings Property Owners
2 Association, Inc.?

3 A. I don't know, because -- you should ask
4 them that question. I don't have any knowledge of
5 that.

6 Q. You didn't do anything yourself, as the
7 lawyer and agent of Mullins Brothers Limited, to
8 assist in requiring owners of lots to become
9 members of The Landings Property Owners
10 Association, Inc., correct?

11 MS. AMADOR: Objection to
12 characterization of agent.

13 A. I don't have any -- I'm having some
14 trouble staying with you as to which entities
15 you're referring to because the names are somewhat
16 similar. And I'm not sure that you've ever used
17 the term "common areas," and that's what's
18 confused me. So maybe you should ask the question
19 again.

20 Q. Sure.

21 A. Because I think I may have gotten
22 confused as to which entity you're referring to --
23 or which -- one never became an entity. Which
24 name you were referring to.

1 MS. AMADOR: I would agree.

2 Q. Well, let's go back through it.

3 MS. AMADOR: I did not hear you use
4 "common area."

5 MR. CHAPPELEAR: I'm sorry?

6 MS. AMADOR: I would agree. I did not
7 hear you use the common area association name.

8 MR. CHAPPELEAR: All right. If that's
9 the case, I apologize. Let me go back through,
10 and we'll clear this up.

11 Q. To your knowledge, did Mullins Brothers
12 Limited ever do anything to require the owners of
13 all lots in Phases VII and VIII of The Landings to
14 become members of a nonprofit corporation known as
15 The Landings Common Area Association, Inc.?

16 A. No.

17 Q. To your knowledge, did Mullins Brothers
18 Limited ever do anything to require the owners of
19 all lots in Phases VII and VIII of The Landings to
20 become members of a nonprofit corporation known as
21 The Landings Property Owners Association, Inc.?

22 A. Not that I'm aware of.

23 Q. And you personally did not take any
24 steps as the attorney for Mullins Brothers Limited

1 to assist Mullins Brothers Limited in requiring
2 owners of lots to become members of a nonprofit
3 corporation known as The Landings Common Area
4 Association, Inc., right?

5 A. That's correct.

6 Q. And that would also be true for a
7 nonprofit corporation known as The Landings
8 Property Owners Association, Inc.?

9 A. That's correct.

10 Q. Had you, before doing this work for
11 Mullins Brothers Limited, worked with other
12 developments that had homeowners associations?

13 A. I'm not -- I don't think so. The
14 reason -- I've been associated with them as an
15 owner and as a participant, but -- on several
16 occasions, but I don't know that I was ever the
17 attorney that I can recall.

18 Q. You've worked as a developer yourself,
19 right?

20 A. I did do -- well, we could define
21 "developer," but another fellow and I did a
22 subdivision in Mount Vernon and sold lots in it,
23 yes.

24 Q. When was that?

1 A. I think we started selling lots in
2 1995. So there was some obviously work prior to
3 that time and after.

4 Q. Who was the other --

5 A. I can -- pardon me?

6 Q. Who was the other individual?

7 A. Ray Grandstaff.

8 Q. And what was the development named?

9 A. Pannell Properties. It's a
10 partnership.

11 Q. I'm sorry. What was the name of the
12 area or the housing development? Did it have a
13 name?

14 A. Oh. Laurelwood.

15 Q. Thank you. And where was that?

16 A. Well, it's off Park Road, on the east
17 side of Mount Vernon.

18 Q. How many houses were in the
19 development?

20 A. I think 35, though we mainly sold lots.

21 Q. Did you have a house there?

22 A. Nope.

23 Q. Was there a homeowners association?

24 A. Nope.

1 Q. Now, did you say earlier that you've
2 been in four or five homeowners associations?

3 A. Yes.

4 Q. What are they?

5 A. Well, I have a house in Arizona that's
6 in a 55-plus community, and it has a homeowners
7 association. I currently live in Easton,
8 Maryland, in a Del Webb community, which has a
9 homeowners association. Those are the two that
10 I'm currently active in. I'm trying to think of
11 -- there may have been another one. Let's just go
12 with those two that I'm sure of.

13 Q. Okay. Well, you said four or five, I
14 thought, earlier. That's what I'm trying to
15 understand.

16 A. Well, it just strikes me that there
17 were -- that I owned property in other such
18 associations over my lifetime, but I can't recall
19 the names.

20 Q. When did you first become a member of
21 the homeowners association in Arizona?

22 A. Well, I can't do the math right now,
23 but it was about 28 years ago.

24 Q. Is that Sun City?

1 A. No. It's in Tucson, Arizona. Not the
2 Sun City development, but a similar type done by a
3 developer named Robson Development.

4 Q. All right. So you were a member of
5 that homeowners association at the same time that
6 you were doing this work with Mullins Brothers on
7 the preparation of these declarations, right?

8 A. Yes.

9 Q. Who did you work with in your
10 representation of Mullins Brothers Limited? Was
11 it primarily Steve Mullins?

12 A. Yes. Primarily Steve.

13 Q. Who else?

14 A. Well, his brother Jim on occasion, but
15 I think Jim was living in the Columbus area and
16 Steve was living in Mount Vernon. And so almost
17 -- you know, most of my work was -- my contact was
18 with Steve.

19 Q. Who came up with the name Landings
20 Common Area Association, Inc.?

21 A. I haven't any idea. It would have been
22 something probably Steve and I, in sitting around
23 and, you know, drafting what we needed to draft
24 and making what changes we needed to make in the

1 -- in the restrictions.

2 Q. Who came up with the name The Landings
3 Property Owners Association, Inc.?

4 A. I wanted to make sure that I didn't get
5 confused again, because -- or did you mean to ask
6 me: Who came up with the name The Landings Common
7 Area Association, Inc.?

8 Q. No, sir. That's the question I asked
9 you three minutes ago. My question is: Who came
10 up with the name The Landings Property Owners
11 Association, Inc.?

12 A. All right. The answer would be the
13 same for -- no matter which one you're asking
14 about.

15 Q. That you don't know?

16 A. Well, it would -- you know, it wasn't
17 someone off the street. It was either -- it was
18 me, in conjunction with my client, in the process
19 of developing the document.

20 Q. Did you provide a draft of the
21 declaration building and development restrictions
22 for Phase VII to Steve Mullins before it was
23 approved for use?

24 A. I believe that we probably just started

1 with a draft of Phase VI and marked it up. So
2 that was our working draft, and the only things
3 that -- as I recall that we changed besides the
4 roman numeral designation of which phase we were
5 in was we changed the requirements for square
6 footage by some small amount.

7 I do have some memory that -- this is
8 on page 7, by the way. The minimum square
9 footage, 1,600 square feet, 1,900 square feet,
10 and 2,150 square feet, depending on whether you
11 have a one-story, one-and-a-half story, two-story
12 dwelling. Those were slightly smaller than the
13 earlier versions, which had 1,650, I believe, and
14 so forth.

15 So there was that change, which was at
16 Steve's request. So we were obviously working
17 from -- I believe it was the Phase VI document and
18 making that change, and then the language in
19 paragraph B that we've been discussing probably
20 started out with my doing it and coming up with
21 the original Landings Common Area Association,
22 Inc., name.

23 Q. Did you provide --

24 A. I can -- I'm sorry?

1 Q. Go ahead.

2 A. Well, I was just going to say that
3 keeping in mind that there was a desire to
4 maintain consistency among the various phases. It
5 didn't seem fair to the existing property owners
6 to make radical changes in the new restrictions.
7 So we tracked them almost identically except for a
8 few places.

9 And the paragraph B that we've referred
10 to extensively still tracks the language almost
11 exactly from the earlier phases, referring to a
12 different developer and a different -- and a
13 different association. So using the original --
14 or the earlier phases restrictions, we made just
15 these few changes.

16 So your question was about a draft.
17 That was how the draft evolved.

18 Q. Right. My question isn't really how it
19 evolved, but once it did evolve and you did your
20 wordsmithing from the Phase VI declaration and
21 changed it to -- now you have a new document for
22 Phase VII, right?

23 A. Right. Right.

24 Q. Did you provide a draft -- a copy of

1 that draft to Steve Mullins for him to review?

2 A. Oh, I'm sure I did. I don't think he
3 was -- I don't think he would have read it word
4 for word since we didn't make changes in 99
5 percent of it, but he did sign it, and he did
6 agree to it. I don't know that he would have paid
7 any attention -- I know I wouldn't have if I were
8 him -- to the name that we had put in paragraph B
9 at that point in time.

10 Q. Did you call to Mr. Mullins' attention
11 the new language that you had created in
12 paragraph B on page 3?

13 A. Yes.

14 Q. Did he make any changes in the language
15 of paragraph B after reviewing that draft?

16 A. I don't recall.

17 Q. And so as far as you recall, the two
18 paragraphs that make up paragraph B on page 3 are
19 all your words that you put in there using some --
20 what might have been similar language in the Phase
21 VI declaration, right?

22 A. I think the answer's yes. I mean, it
23 was my language to begin with. I mean, the
24 language is in the other documents from Phase VI

1 to begin with. It was my language that resulted
2 from that. I'm sure that Steve and I talked about
3 it. Whether we made any changes in the drafting
4 process, I don't recall, but yes. It was a joint
5 effort to come up with and finally use that
6 language.

7 Q. Why did you include language in
8 paragraph B about members of the Waters Edge
9 Homeowners Association?

10 A. Because it was in all the other
11 previous documents.

12 Q. Any other reason?

13 A. Well, it has meaning. The Waters Edge
14 Homeowners Association, as I recall, was an
15 association of those people who owned the -- what
16 I call patio homes on the north side of the pond.
17 And it was historically made clear that they were
18 not being deprived of any rights to enjoy that.
19 So it was continued in this document.

20 Q. Now, paragraph B does not give any of
21 the owners of lots in The Landings Phase VII or
22 Phase VIII to use the lake for recreational
23 purposes, correct?

24 A. No. There's no specific reference to

1 that.

2 Q. Is there a general reference?

3 A. Well, the thought process is that the
4 -- what I'll refer to as the property owners
5 association would control that, that each lot
6 owner would be a member and each lot owner would
7 have the right to use or not use as that
8 association determined.

9 Q. Is there anything in paragraph B as you
10 wrote it that gives the owners of lots in either
11 Phase VII or Phase VIII of The Landings any right
12 to use the lake for recreational purposes?

13 A. It's silent on that. It doesn't give
14 them any right, nor does it deprive them.

15 Q. All right. Now, if you look in the
16 second paragraph of B -- do you see that?

17 A. Yes.

18 Q. There's a reference to the board of
19 trustees of the corporation, right?

20 A. Yes.

21 Q. That's language that you wrote, and it
22 was reviewed by Mr. Mullins, right?

23 A. Well, it's language that I wrote. And
24 it was available for him to read, and I assume he

1 did.

2 Q. All right. And who were the members of
3 the board of trustees of the corporation?

4 A. I don't think there were any at that
5 point in time.

6 Q. Are you aware of any action taken by
7 Mullins Brothers Limited to form a board of
8 trustees of a corporation known as The Landings
9 Common Area Association, Inc.?

10 A. I am not specifically aware of any, no.

11 Q. Did you take any action to create a
12 board of trustees for The Landings Common Area
13 Association, Inc.?

14 A. No.

15 Q. The next sentence refers to
16 regulations. Do you see that?

17 A. I do.

18 Q. And those would be regulations of the
19 nonprofit corporation known as The Landings Common
20 Area Association, Inc., right?

21 A. Well, confining yourself to
22 paragraph B, that would be correct.

23 Q. Well, why did you narrow your answer?
24 Why is it limited to paragraph B? Are you --

1 A. Well --

2 Q. Is it some other corporation that's
3 being referred to here?

4 A. No. That's what I said. In
5 paragraph B, that's what it's being referred to,
6 that name, the Common Area -- Landings Common Area
7 Association, Inc.

8 Q. All right.

9 A. So the language "however" is equally
10 applicable to the functioning of any nonprofit
11 corporation, as far as I know.

12 Q. That is a nonprofit corporation needs
13 to have regulations, right?

14 A. Well, they need to have some documents
15 showing how they're organized and how they're
16 going to function. If those are not referred to
17 as regulations, they may be referred to as
18 something else.

19 Q. All right. And you've prepared many,
20 many sets of regulations for corporate entities or
21 LLCs, right?

22 A. Yes.

23 Q. You're perfectly capable of doing that,
24 and you were capable of doing that, in the early

1 2000s, right?

2 A. Yes.

3 Q. What regulations did you ever prepare
4 for the nonprofit corporation known as The
5 Landings Common Area Association, Inc.?

6 A. I prepared none.

7 Q. All right.

8 A. For the --

9 Q. Let's take a look at that other
10 company, the other name that you used. Did you
11 ever prepare any regulations for a nonprofit
12 corporation known as The Landings Property Owners
13 Association, Inc.?

14 A. I don't have any memory of that either
15 way, to tell you the truth. Has anyone ever
16 produced any such regulations? I mean, if there's
17 documents that say I produced them, I produced
18 them, but I don't recall that.

19 Q. Is there anything in paragraph B that
20 you drafted that imposes liability on individual
21 lot owners in The Landings for care and
22 maintenance of the lake?

23 A. No. There's nothing --

24 MS. AMADOR: Objection.

1 A. -- in there that would do that.

2 Q. Is there anything in paragraph B that
3 would impose liability on individual lot owners in
4 The Landings for care and maintenance of the earth
5 and dam?

6 A. There is not.

7 MS. AMADOR: Objection.

8 Q. You said earlier, when Ms. Amador was
9 asking you questions, that your office was
10 involved in some sales of lots. Were you
11 referring to your title company Oak Creek or were
12 you referring to your law firm? Who were you
13 talking about when you were talking about being
14 involved in the sales of some of the lots of The
15 Landings?

16 A. Primarily real estate closings through
17 the title agency, Owl Creek.

18 Q. Owl Creek. Sorry. And didn't you also
19 tell me that you rarely would attend a closing as
20 a lawyer, that those were handled by closing
21 agents?

22 A. That would generally be right.
23 However, in the sale of lots, frequently, they're
24 cash transactions, not involving lending. And in

1 this case, there were actual clients who were
2 buying lots who we may have represented in the
3 capacity of there being a buyer as well, and we
4 handled the closing. So I've been in closings,
5 yes, but, customarily, it's done by someone else.

6 Q. All right. What was done with the \$200
7 that was collected at closing that related to HOA
8 dues?

9 A. You know, I don't have any specific
10 memory or knowledge of that. I have some
11 assumptions.

12 Q. No. I'm just asking about your
13 knowledge.

14 A. Okay.

15 Q. Not your guesses.

16 A. No. I don't have any direct knowledge
17 of -- I don't have any direct memory of that.

18 Q. All right. And you don't have any
19 direct memory of ever paying \$200 yourself when
20 you bought --

21 A. That's correct.

22 Q. -- your property, right?

23 A. That's correct.

24 Q. And not only when you bought it, but

1 you don't have any specific recollection of ever
2 paying \$200 to anybody for homeowners dues at The
3 Landings, right?

4 A. That's correct. And I found that
5 somewhat surprising, actually.

6 Q. Did you ever say anything to anybody
7 else in The Landings about -- hey, why aren't we
8 paying \$200?

9 A. No. I didn't have any conversations
10 with anyone about that.

11 Q. You said, I think, that the president
12 lived down the street from you?

13 A. Yes.

14 Q. Who is that?

15 A. George Bertko.

16 Q. All right. And when was Mr. George
17 Bertko the president of the homeowners
18 association?

19 A. You know, I don't recall. It was, of
20 course, while -- between the time -- I mean toward
21 the time I moved. He was also a personal client
22 of mine, and I recall that he got transferred or
23 had a new job opportunity and moved. And as a
24 result, he resigned his presidency.

1 And he lived -- he lived, in fact, on
2 the lake, just west of where I lived. He was only
3 -- I don't know -- five or six houses away.

4 Q. How far did you live from the lake?

5 A. Well, the house that I lived in was
6 probably five or six houses, 500 feet, maybe, from
7 the lake -- I mean from the east side. But I had
8 originally bought a vacant lot that touched on the
9 lake with the idea I would build a house there,
10 but I found another house instead and then ended
11 up selling that lot.

12 Q. When did you sell that lot?

13 A. I'm going to say somewhere around 2015.
14 Within a year of that.

15 Q. Was Mr. George Bertko the president of
16 the HOA when you moved in?

17 A. I don't recall when he became
18 president. I wasn't very active in the homeowners
19 association because they weren't very active. You
20 know, there are various things that were going on
21 that I wasn't paying too much attention to either
22 because I didn't live there then or otherwise, you
23 know.

24 There were discussions that I recall

1 about building, for example, a playground on the
2 common area property and, you know, the back and
3 forth about whether that would be a good idea or
4 bad idea. It was eventually decided, I think, not
5 to do that.

6 There was also some discussion about --
7 these are all just vague memories that I have
8 without real specifics -- that there was a problem
9 with some people thought with the depth of the
10 pond, that it wasn't deep enough to retain water
11 in a -- maybe a heavy rain, and they wanted it
12 dredged. And Steve Mullins may have had been more
13 active in that than I was. There was some
14 discussion about whether he would pay for that,
15 the dredging.

16 So, you know, there were issues, and
17 they were functioning as an entity over a period
18 of quite some time. They were --

19 Q. In what manner? Were there meetings?

20 A. Yes, there were meetings.

21 Q. How often?

22 A. I don't know. Annually at least, I
23 believe.

24 Q. All right. So annual meetings, and did

1 you ever attend these?

2 A. I attended one.

3 Q. So you attended one annual meeting.

4 Are you confident that there were always annual
5 meetings the entire time you lived there?

6 A. Nope. I'm not.

7 Q. All right. So in the one annual
8 meeting that you did attend, what year was that?

9 A. Again, I don't recall, specifically. I
10 only lived there from, I think, 2014 to 2017, so
11 it was in that time frame and probably toward the
12 middle of it. I don't recall the issue that was
13 being discussed at that one meeting I attended.

14 Q. No idea?

15 A. No, I really don't.

16 Q. All right. How long did the meeting
17 last?

18 A. I have no idea.

19 Q. Where was it?

20 A. I can remember what the place looked
21 like, but I can't remember what it was. Sorry.

22 Q. Was it in The Landings?

23 A. No. I don't think they had a -- they
24 had no place to hold a meeting at The Landings.

1 Q. Someplace in Mount Vernon?

2 A. Oh, yeah. It was in Mount Vernon.

3 Q. All right. How many people were there?

4 A. Oh. I can give you a rough guess.

5 Fifty.

6 Q. All right. But you have no idea what
7 was discussed in that meeting, right?

8 A. No. It was something I was interested
9 in at the time, but I don't recall why.

10 Q. Other than that one annual meeting, did
11 you ever attend any other meeting of something
12 called an HOA for The Landings?

13 A. No.

14 Q. Did you ever see any minutes of any
15 meetings of any entity calling itself an HOA for
16 The Landings?

17 A. I don't recall seeing any minutes. I
18 do remember -- I mean, I got correspondence and
19 notices, but I don't recall minutes.

20 Q. Did you ever go to the lake while you
21 lived there at The Landings?

22 A. Yes. Well, more so -- more so when I
23 owned the lot that joined that touched the lake,
24 because I mowed the lot weekly, and -- but did I

1 go to -- you know, to get to the lake is not easy.
2 I assume you've seen it. It's bordered by houses
3 all the way around.

4 You have to pass over -- I'm not sure
5 there's a common access to the lake, though there
6 may be. Yeah. There's -- okay. So when you say
7 go to the lake, I could see it from my house. I
8 could walk down by it. I've never thrown a
9 fishing line in it. I've never thrown a stone in
10 it, you know, whatever --

11 Q. Did you put a boat on it?

12 A. -- but -- pardon me?

13 Q. Did you ever put a boat on it?

14 A. No. I've never seen a boat on the
15 lake. It's so small.

16 Q. Have you ever seen anyone from The
17 Landings fish in that lake?

18 A. I have not.

19 Q. Have you ever seen --

20 A. They may have, but I haven't seen it.

21 Q. Have you ever seen anyone from The
22 Landings use the lake for any recreational
23 purpose?

24 A. No.

1 Q. Did you ever -- I'm sorry. Let me
2 start that over a little different way.

3 Are you aware of anyone from or on
4 behalf of Mullins Brothers Limited ever taking any
5 action to place any assessment liens on record as
6 to any lot owner in The Landings?

7 A. No.

8 Q. Are you aware of anyone from Mullins
9 Brothers Limited or on behalf of Mullins Brothers
10 Limited ever informing any of the lot owners in
11 The Landings that they are owners or potential
12 owners of a dam?

13 MS. AMADOR: Objection. Go ahead.

14 A. The answer's no.

15 Q. Has anyone from or on behalf of Mullins
16 Brothers ever informed any individual lot owner in
17 The Landings that they have potential liability
18 for maintenance of the dam?

19 A. Not that --

20 MS. AMADOR: Objection.

21 A. -- I'm aware -- not that I'm aware of.

22 MR. KRAVITZ: I also object to that
23 question.

24 Q. While you owned your lot and your house

1 in The Landings, did you ever feel a personal
2 responsibility to make sure that you and your
3 fellow homeowners were paying annual dues to a
4 homeowners association?

5 A. I'm sorry. You may have to repeat that
6 for me. Did I ever feel an obligation?

7 Q. Sure.

8 A. Why don't you just repeat the question.

9 Q. Sure. I'm happy to. During the period
10 of time that you owned property in The Landings,
11 either as a homeowner or as a lot owner, did you
12 ever feel a personal responsibility to make sure
13 that you and your other homeowners were paying
14 \$200 every year to a homeowners association?

15 A. No. I had other feelings about that.

16 Q. Did you ever voluntarily pay \$200 to
17 any entity saying, I know I'm supposed to pay
18 somebody, here's my \$200? Did you ever do that?

19 A. No.

20 Q. And that would have been \$200 for the
21 lot and \$200 for the house, right?

22 A. Yes.

23 Q. And you never once, in any of those
24 years that you lived there, paid that \$400 to

1 anybody, right?

2 A. That is correct. And if I may expand
3 on it, as I've mentioned before, the property
4 owners association -- I'll refer to that entity as
5 the property owners association -- had informed me
6 and I assumed other lot owners that we did not
7 need to pay that money.

8 Q. Right. And did they tell you that the
9 reason that you didn't have to pay that is because
10 the homeowners association didn't own the lake or
11 the dam?

12 A. No.

13 MS. AMADOR: Objection.

14 A. They didn't say that. They said --

15 Q. You're positive that no one ever told
16 you that the reason you don't have to pay the \$200
17 is because that homeowners association was not the
18 owner of the dam or the lake? Are you positive?

19 A. Well, I'm as positive as I can be
20 sitting here and based also on my observation that
21 they were mowing the property, that they were
22 caring for the property, that I'm told they were
23 insuring the property. They were acting like
24 owners.

1 Q. Well, who mowed the property?

2 A. I have no idea who actually mowed it.
3 I'm pretty sure that the property owners
4 association paid for it.

5 Q. Well, let's stop right there. You say
6 you're pretty sure. I want to know how you know
7 who was mowing that property.

8 A. I do not have personal knowledge of
9 that. I know --

10 Q. Thank you.

11 A. -- the property was mowed.

12 Q. Thank you.

13 A. I don't know anyone who voluntarily
14 does that.

15 Q. Right. And so you're making some
16 guesses and some assumptions, right?

17 A. Educated.

18 MS. AMADOR: Objection.

19 Q. Guesses and assumptions, right?

20 A. Yes.

21 Q. Thank you.

22 MS. AMADOR: Same objection.

23 Q. And you don't have any recollection --
24 well, let me back up.

1 So you only went to one meeting, right,
2 of the homeowners association?

3 A. Yes, I think that's right.

4 Q. And you have no idea what was discussed
5 at that meeting, right?

6 A. Not specifically. I know it was about
7 -- something about the function of the homeowners
8 association, but --

9 Q. Right.

10 A. -- what it was, I don't recall.

11 Q. Sure. And so could you tell me, sir,
12 how it is that you're so confident that you were
13 told that you didn't have to pay \$200 for some
14 reason? Who told you that?

15 MS. AMADOR: Objection.

16 A. It was a communication from the CPA
17 firm of Nelson & Nelson. Specifically, I think it
18 was the signature of Sally Nelson, who I knew.
19 And at this time, the association had its own
20 accountant, it's own lawyers, and they were
21 functioning as an entity. And I wasn't hard up
22 for the \$200. I would have paid it. They
23 apparently didn't want it.

24 Q. Who was the lawyer for the association?

1 A. Well, I think they had different
2 lawyers over time. Kim Rose from -- was their
3 lawyer for a while. I don't know who else may
4 have been their lawyer.

5 Q. And is the homeowners association
6 you're talking about The Landing Development Phase
7 VII and Phase VIII Property Owners Association,
8 Inc.?

9 A. I don't know it by that name.

10 Q. What name do you know it by?

11 A. The one we've been talking about the
12 whole time, The Landings Property Owners
13 Association. Yeah. We've only been talking about
14 two names, haven't we? One having the term
15 "Common Areas" and one not. Those are the only
16 two that I'm familiar with.

17 Q. We've been talking about two --

18 A. It --

19 Q. I'm sorry. We've been talking about
20 two up until one and a half minutes ago.

21 A. Okay well --

22 Q. That's when I introduced a new name to
23 you, and that's what I'm asking you is --

24 A. No. I've never heard of it.

1 Q. There is an entity known as The Landing
2 Development Phase VII and VIII Property Owners
3 Association, Inc.

4 A. I have never heard of that. Don't know
5 how at this time got created, don't know anything
6 about it.

7 Q. And you don't know that that's what
8 Mr. Rose was representing?

9 A. Nope. I have no idea.

10 Q. And you don't know if you ever got any
11 written communications from The Landing
12 Development Phase VII and VIII Property Owners
13 Association, Inc.?

14 A. It would have been a total -- no. I
15 don't recall getting anything. I've never heard
16 of that entity. I probably would have recognized
17 it as something I didn't know, but I have --
18 that's a new one on me.

19 Q. When you went online to look for
20 documents the other day, did you look at the
21 Secretary of State's office for documents relating
22 to The Landings?

23 A. Yes. I was looking for their articles
24 of incorporation.

1 Q. For what entity?

2 A. For the -- for the entity created by
3 Exhibit A-1.

4 Q. Now, you've talked about -- earlier
5 when you claimed there was a scrivener's error
6 that there was an unintentional difference in
7 names in one document compared to two other
8 documents. Which one was the error? Was the
9 error in the deed or was the error in the
10 declaration?

11 A. The error was in the declaration. I
12 guess plural. In both of them.

13 Q. The first declaration was filed with
14 the Knox County Recorder's Office March 22, 2005.

15 A. Yes.

16 Q. All right. Then that quitclaim deed
17 you prepared was signed July 31, 2007, so a little
18 over two years later, right?

19 A. Right.

20 Q. And it's your belief that the correct
21 name was used in that 2007 deed, right?

22 A. Yeah. It's my opinion. I don't -- I
23 don't have a copy of the deed in front of me, but
24 I'm sure that the intention -- if it isn't

1 actually, you can tell me -- was that the deed
2 would be to the same entity that was formed in
3 2005 with the Secretary of State.

4 Q. I think you have the deed there as
5 Exhibit A-4.

6 A. Well, I don't have it printed in front
7 of me. I did not print off all the exhibits.

8 MR. CHAPPELEAR: Could we put
9 Exhibit A-4 back up in front of the witness,
10 please? Could you do that, Craig, or is that
11 Kelli? Do you have that?

12 MS. AMADOR: It's me.

13 A. Okay. I can see it now.

14 Q. All right. So that's the deed in
15 July of 2007, recorded on August 1, right?

16 A. Right.

17 Q. And it's your testimony that the deed
18 should have said Landings Common Area Association,
19 Inc.?

20 A. No, that is not my --

21 Q. Is that --

22 A. No, that is not my testimony.

23 MS. AMADOR: Objection.

24 A. Let me be clear.

1 Q. Sure.

2 A. That name in paragraph B, The Landings
3 Common Area Association, Inc., can be found only
4 one place in the world, and it is in that
5 paragraph. It was never used again. No entity
6 was ever created. No deed was ever created. It
7 was, to my knowledge, never, ever used again.
8 That's why I deemed earlier that to be the
9 mistake, that it was ever used in that document.

10 Q. I beg your pardon. You did say that.
11 So the error was in the declaration, which is the
12 document that was given to every single homeowner
13 in The Landings Phase VII and Phase VIII
14 development, correct?

15 A. Well, I don't know that it was given to
16 every --

17 MS. AMADOR: Objections.

18 A. -- homeowner. It was available. It
19 was a public document, but I don't know it was
20 given to everyone.

21 Q. And are you aware of any notification
22 ever being given by you, your law firm, or anyone
23 with or on behalf of Mullins Brothers Limited
24 telling homeowners that there was a mistake in

1 paragraph B on page 3 of the declaration?

2 A. No. I'm not aware of any such thing
3 like that. It's my recollection that that
4 remained that way until -- for several years with
5 no one ever bringing it up, that -- I don't know
6 when it first came up, but I don't recall it ever
7 being mentioned that there was a discrepancy, an
8 error in the name there for 14 years, 15 years.

9 Q. Do you still have paragraph B in front
10 of you?

11 A. Yes.

12 Q. Do you see the second sentence where it
13 starts, "This corporation..."?

14 A. Yes.

15 Q. What corporation was referred to in the
16 second sentence of Section B?

17 A. In the context of that paragraph, that
18 reference was to The Landings Common Area
19 Association, Inc.

20 Q. As a homeowner and lot owner in The
21 Landings, did you ever believe that you had any
22 individual liability for the care and maintenance
23 of either the lake or the dam?

24 MS. AMADOR: Objection. Go ahead.

1 A. No. I -- as a lawyer, I viewed the
2 owners of the lots in a fashion similar to
3 shareholders in a corporation, that they didn't
4 have personal liability for things that the
5 corporation itself did.

6 Q. And as you structured this document, it
7 was the corporation by whatever name -- but it was
8 intended that a corporation would be the owner of
9 the lake and the dam, correct?

10 A. That is correct.

11 MR. KRAVITZ: Objection.

12 Q. And that it was that corporation?

13 MR. KRAVITZ: Objection.

14 Q. And not its individual members or
15 shareholders or however you might think of them
16 that would have individual liability for care and
17 maintenance of the lake, right?

18 MS. AMADOR: Objection.

19 A. Right.

20 MR. KRAVITZ: Objection.

21 MR. CHAPPELEAR: Thank you. Those are
22 all the questions that I have. I appreciate your
23 patience.

24 MR. BROEREN: I have a few questions.

- - - - -

CROSS-EXAMINATION

BY MR. BROEREN:

Q. Good morning, Mr. Rauzi.

A. Good morning.

Q. Mr. Rauzi, you have in front of you what has been marked as Exhibit A, which are the articles of incorporation; is that correct?

A. Yes. Well, no. I don't have them in front of me. I didn't print those off, but I know what you're referring to.

Q. Okay. And you filed those?

A. Yes.

MR. BROEREN: Ms. Amador, can I get you to throw that up for us, please?

Thank you very much.

And is that the first page? Are you up to the first page?

That's -- yeah.

Q. And at the very top there, it shows the date that that was filed; is that correct?

A. Well, I don't see it on there.

Q. In the -- it says date in the --

A. It was April 1st, right?

1 Q. 3-31. And then if you scroll down a
2 little bit further, it shows the date that they
3 were issued, which is April 1st; is that correct?

4 A. April 1st. That's correct.

5 Q. And these are the articles of
6 incorporation for The Landings Property Owners
7 Association, Inc., which you said is supposed to
8 be the owner of all of this?

9 A. I did, and it is.

10 Q. Okay.

11 A. The deed is to that entity.

12 Q. Turning to what is marked as
13 Exhibit A-2, if we go to the first page there,
14 these are the restrictive covenants for Phase VII;
15 is that correct?

16 A. Yes.

17 Q. And you filed those on March 22nd of
18 2005, based upon the recorder's stamp?

19 A. Yes.

20 Q. Going over to page 3, Section B, the
21 second paragraph -- the last sentence of the
22 section paragraph of Section B, it reads, "Initial
23 Articles of Incorporation are attached hereto and
24 recorded herewith as Exhibit 'A;' " is that

1 correct?

2 A. Yes.

3 Q. However, you did not file those --
4 these articles of incorporation were not issued
5 until April 1st?

6 A. That's correct.

7 Q. How did you attach something that was
8 not issued until after the date that you filed it?

9 A. Obviously, they were not attached.

10 Q. And there is, in fact, not any record
11 of them with the Knox County Recorder?

12 A. No. I'm not sure you file articles of
13 incorporation with the Knox County Recorder.

14 Q. Well, you said that they were attached
15 as Exhibit A.

16 A. Oh, okay. You mean recorded in some
17 other place?

18 Q. Yes.

19 A. Not that I'm aware of.

20 Q. They were recorded here.

21 A. Yeah.

22 Q. But you said that they were a part of
23 this document.

24 A. I did, and I did not attach them. I

1 could not have.

2 Q. All right.

3 A. I would point out where that language
4 came from, however, if you're interested.

5 Q. Where did that language come from,
6 Mr. Rauzi?

7 A. In all of the other earlier phases,
8 there was reference to an association being formed
9 and the same, exact language -- I don't think -- I
10 don't think it said initial articles of
11 incorporation. I think it said initial articles
12 of association are attached hereto, and they were
13 not attached on any of the prior six sets of
14 restrictions, either. And I had picked up that
15 language. As I said, this was a cut-and-paste
16 kind of copying job.

17 Q. Uh-huh.

18 A. And so that language got picked up, and
19 just like the earlier versions, they were not
20 attached.

21 MR. BROEREN: Can we go to Exhibit A-3,
22 please.

23 Go to page 3.

24 Q. In subparagraph B in the second

1 paragraph, there is no mention of the articles of
2 incorporation being attached; is that correct?

3 A. That's correct. Looks like we
4 discovered that that error existed and fixed it.

5 Q. Okay. Mr. Rauzi, you said that your
6 title agency, which you believe to be Owl Creek at
7 the time you worked with Murray & Rauzi, did a
8 number of closings for various lots at The
9 Landings; is that correct?

10 A. That's correct.

11 Q. And you have also previously testified
12 that you think that at least on some of them, that
13 the \$200 fee was assessed?

14 A. Oh, yes. I'm sure it was, because -- I
15 mean, I have specific memory of a couple of
16 closings where people -- purchasers seemed to be
17 surprised that that item showed up on the
18 settlement statement and that they weren't aware
19 of it.

20 Q. And when that showed up on the
21 statement, did you have any discussions with them
22 about what that was for?

23 A. Oh, sure. Usually, that involved
24 producing a copy of the restrictions and showing

1 them where it was -- where it existed.

2 Q. And Owl Creek Title is still in
3 business; is that correct?

4 A. Yeah. I think so, yes.

5 Q. How long does Owl Creek Title keep
6 records?

7 A. I have no idea. Seven years or so, I
8 would imagine.

9 Q. So it's possible that they may have
10 some of the records, although -- maybe, maybe not,
11 but it is possible that they may have some of the
12 records from some of the earlier closings that
13 would show these people who had the \$200 fee taken
14 out?

15 A. If the -- if they're available, they
16 would show that, at least to my knowledge, on at
17 least two of them that I personally was involved
18 with and probably on others.

19 Q. And would -- the closing would say
20 where the money was going to?

21 A. It would say who the check was made
22 payable to.

23 Q. Uh-huh.

24 A. And that would give you some clue as to

1 where it went.

2 Q. Very good. You did -- in Exhibit 4,
3 which is the quitclaim deed for the property --
4 you created that, correct?

5 A. Yes.

6 Q. Why did you use a quitclaim deed?

7 A. Well, I was representing the seller, if
8 you will, transferor, and there didn't seem to be
9 any need to give warranties.

10 Q. Why was there no need to give
11 warranties?

12 A. Well, if you -- if you're representing
13 the seller, generally, you don't want the seller
14 to do anything more than the seller has to.

15 Q. Were you aware if the buyers were
16 represented by an attorney?

17 A. Of course, they weren't buyers since
18 they didn't pay anything, but if you're -- and I
19 don't know that they were. I mean, they may have
20 been, but this is a -- this is 2007. Lots were
21 just being sold in Phase VIII. The sales from
22 2005 to 2007 were all in Phase VII, and I think
23 this was done about -- approximately the same time
24 as Phase VIII was being developed and ready for

1 sale.

2 In the prior two years, you know -- it
3 wasn't like they sold all 34 lots at one time, you
4 know. There was a period of time before any were
5 sold. Then they were being sold, and I -- this
6 money was, I presume, being collected by various
7 -- not everyone went to Owl Creek other than --
8 you know, there was more than one title agency.

9 So money was being collected. The
10 property was still owned by Mullins Brothers. It
11 hadn't been deeded away yet. And I don't know
12 that they were doing anything but mowing the
13 grass, so there didn't seem to be any real
14 function at that point in the nonprofit
15 corporation. I mean, it was in existence, but it
16 wasn't doing anything.

17 Q. Who represented the buyers at the
18 closing?

19 A. Which are you referring to? This
20 transfer to --

21 Q. For the quitclaim deed.

22 A. I don't think anyone represented them.
23 I mean, at the time, it was still owned by Mullins
24 Brothers, so they were both -- they were the

1 seller, and at that time, the -- that nonprofit
2 corporation, they were probably still in charge of
3 that. So they were probably on both sides of that
4 transaction.

5 I don't -- someone else would have to
6 figure out when the association actually held
7 meetings, elected officers, and began actually
8 functioning after the articles were filed.

9 Q. So at the time of the creation of the
10 nonprofit corporation that Mullins Brothers
11 controlled both the corporation as well as the
12 development corporation; is that correct?

13 A. Yes.

14 Q. And at some point after the creation,
15 Mullins Brothers would have turned the corporation
16 -- The Landing Property Owners Association, Inc.,
17 over to the homeowners association?

18 A. Yes.

19 Q. Were you involved with that?

20 A. No.

21 Q. Do you know who --

22 A. Other than preparing the deed.

23 Q. So at the time of the deed, your
24 recollection is that Mullins Brothers was still in

1 charge of the corporation?

2 A. That would be my assumption, yes.

3 Q. You don't have any independent
4 recollection of that?

5 A. No. I really didn't have anything to
6 do with this nonprofit corporation other than to
7 create it.

8 Q. Okay.

9 A. And I guess as being a property owner,
10 being a member of it.

11 MR. BROEREN: Thank you. I have no
12 further questions.

13 MR. KRAVITZ: I just have one
14 additional question.

15 MS. AMADOR: Go ahead, Brett, then I'll
16 go.

17 MR. KRAVITZ: Okay. Thank you.

18 - - - - -

19 FURTHER CROSS-EXAMINATION

20 BY MR. KRAVITZ:

21 Q. Mr. Rauzi, in your 42 years of
22 practice, did you have any experience with Ohio
23 dam safety cases?

24 A. No. As a lawyer, no.

1 Q. Okay.

2 A. As an individual, I had friends who had
3 farm ponds that occasionally got notified that
4 they needed to do something about their dam. But
5 other than that, nothing.

6 Q. Okay. But not as a lawyer?

7 A. No.

8 Q. Okay.

9 A. No.

10 Q. All right. So you're not qualified to
11 give a legal opinion on Ohio dam safety laws, are
12 you?

13 A. Not at all.

14 MR. KRAVITZ: Thank you. That's all I
15 have.

16 MS. AMADOR: Does anyone else need to
17 go?

18 - - - - -

19 FURTHER CROSS-EXAMINATION

20 BY MS. AMADOR:

21 Q. Okay. I just have a few follow-up
22 questions. Feels like a long time ago, but we
23 mentioned your conversation with my former
24 colleague, Nita Hanson. And you mentioned -- I

1 believe your testimony was that she did not tell
2 you what Mullins Brothers' opinion was on the
3 difference between the names in the restriction
4 and the articles of incorporation; is that right?

5 A. That -- I have no recollection of any
6 conversation about Mullins Brothers' opinion as to
7 that issue.

8 Q. All right. And then after your
9 conversation with Nita, did your opinion change on
10 the root cause of the difference in names?

11 A. No. No.

12 Q. Okay.

13 A. When I became aware of the difference
14 in names, which, as I said, was not -- 15 years
15 later or whatever, I said to myself, how could
16 that have happened? And I said, we must have come
17 up with a name as a placeholder until we decided
18 what the name was actually going to be of the
19 corporation, and then we decided that, formed the
20 articles and so forth, and didn't go back and
21 change so that it conformed. So that was an
22 error.

23 Q. But it -- so it was your intention as
24 the drafter to include the same homeowners

1 association in the articles of incorporation and
2 the restriction?

3 A. Yes.

4 Q. Okay. And we spoke -- you gave a
5 little bit more testimony about the membership in
6 the homeowners association, The Landings Property
7 Owners Association. And you said --

8 A. Yes.

9 Q. -- membership was contingent on
10 ownership; is that right?

11 A. Yeah. I don't think I used the term
12 "contingent." I said what I believe to be that if
13 you were an owner of a lot, you became a member of
14 the homeowners association. There are rules about
15 how many votes -- you know, for example each lot
16 gets one vote and so forth. But when I say if you
17 were an owner, I mean, someone -- one owner got
18 the vote.

19 Q. But it is your testimony that this was
20 a functional homeowners association?

21 A. It sure looked like it to me. They
22 were doing everything that would indicate they
23 were functioning.

24 Q. Okay. And there's been a lot of

1 discussion about the dues that were paid or not
2 paid, and I'd like to bring your attention to --
3 one moment -- Exhibit -- well, A-1 -- A-2 or A-3.
4 They're the same in paragraph B, which I'm going
5 to refer.

6 But, essentially, do you see the
7 portion where it says, in the second paragraph of
8 Section B, "...the corporation shall have such
9 powers that are set forth in the Articles and
10 Regulations duly adopted or modified. The
11 corporation may enforce sections of this
12 Declaration..."?

13 A. Yeah.

14 Q. And I skipped the relevant sentence.
15 Each lot owner shall pay an annual assessment in
16 an amount determined by the board of trustees of
17 the corporation, which shall be \$200.

18 A. Yes.

19 Q. So based on your understanding of that
20 paragraph, if the board of trustees decided that
21 no dues were necessary, would dues have been
22 collected?

23 A. It's my opinion that if the association
24 decided that \$200 was too much, too little, or not

1 needed at all, they had the power to change that.

2 Q. Okay.

3 A. And they did.

4 Q. And the language used in both sets of
5 the restrictions that we've looked at, they relied
6 heavily upon prior versions?

7 A. Yes.

8 Q. Is that correct?

9 A. That's correct.

10 Q. And would it be fair to refer to that
11 language as boilerplate language that you used to
12 craft these documents?

13 A. Well, in 99 percent of the document,
14 the paragraph we're talking about tracked similar
15 language, but that's where most of all the changes
16 were made.

17 Q. And then after the 2007 quitclaim deed,
18 would you have expected Mullins Brothers to have
19 any responsibility to enforce the mentioned
20 homeowners association?

21 MR. KRAVITZ: Objection.

22 A. I would have thought that that
23 certainly would have been maybe the final straw
24 that provided they wouldn't have any such

1 responsibility, though it's also entirely possible
2 that earlier than that, the association was up and
3 running with its own officers and directors and
4 made some decisions.

5 Q. Okay. Did you ever --

6 A. I don't --

7 Q. -- address Mullins Brothers -- sorry.

8 And then, finally, did you ever advise Mullins
9 Brothers to use two separate names when the -- in
10 the articles of incorporation or the deed
11 restriction -- the --

12 A. No. As --

13 Q. -- restrictive covenants?

14 A. As I've said before, the existence of a
15 difference between what's in the restrictions and
16 what actually was used for the corporate name and
17 for the ownership of the land was entirely in
18 error.

19 Q. And then I know I said "finally," but
20 once more. The restrictions that we've looked at
21 today in A-2 and A-3, these were filed with the
22 county recorder; is that correct?

23 A. Yes.

24 MS. AMADOR: Okay. That's all. Thank

1 you for your time.

2 MR. BROEREN: I have two follow-up
3 questions, please.

4 - - - - -

5 CROSS-EXAMINATION

6 BY MR. BROEREN:

7 Q. Mr. Rauzi, you said that the name
8 inserted in the declarations, which is
9 Exhibits A-2 and A-3, were meant as placeholders
10 and that it was your intention to go back and
11 change it after you created the real name, which
12 you then incorporated; is that correct?

13 A. That's my memory, yes.

14 Q. How did you plan on doing that, given
15 that you filed A-2 before you filed the
16 corporation?

17 A. Well, the filing date is interesting,
18 but all of these documents were in existence and
19 being worked on about the same time so that you
20 could be working on one document with the intent
21 to modify the other, and then the recording took
22 place after all of them.

23 So what I'm saying is it was a -- I'm
24 not sure I'm saying that eloquently. All the

1 documents were in flux at the same time is what
2 I'm saying and that we may have had the
3 restrictions language being worked on while we all
4 decided, okay, this is what we'll call the
5 nonprofit corporation, and let's prepare those
6 articles and then start recording later without
7 having changed the name in the articles.

8 I know what you're saying, that the
9 timing of the recording doesn't seem to match up
10 with that, but they were all being done pretty
11 much simultaneously.

12 Q. And you said at the time of the
13 creation of the corporation, that Mullins Brothers
14 would have been in charge, correct?

15 A. Yeah. I think Steve Mullins signed the
16 articles, and I think it recites in that he -- I
17 don't -- I've lost the term. The trustee -- sole
18 trustee or whatever it was.

19 Q. And so they would have had to have
20 bylaws or regulations or something like that to
21 operate as a corporation after they were created,
22 correct?

23 A. Eventually, that would be the normal
24 process, that you would create those documents so

1 you have working documents.

2 Q. And you don't have any recollection of
3 having created them?

4 A. I have no recollection, and as I
5 invited someone before to produce them and show
6 that I did, I would say then I did. But until
7 then, I have no memory of ever having done that.

8 Q. And you don't have any copies of them?

9 A. No. For the same reasons.

10 MR. BROEREN: Okay. Thank you.

11 MR. CHAPPELEAR: Ms. Amador, could you
12 please put Exhibit A-2 back up, please.

13 MS. AMADOR: Only because you said
14 "please."

15 MR. CHAPPELEAR: Thank you.

16 - - - - -

17 FURTHER CROSS-EXAMINATION

18 BY MR. CHAPPELEAR:

19 Q. Mr. Rauzi, first following up on the
20 last couple of questions, was there some urgency
21 with the filing of this declaration of building
22 and development restrictions? That is, did it
23 have to be filed by a certain date? Was there a
24 deadline? Was there anything guiding when these

1 were filed?

2 A. No. No artificial [sic] date or
3 deadline. As I recall and as the deed shows, with
4 respect to Phase VII, Phase VII had already been
5 platted, and the lots had been conveyed as lots,
6 not as a metes and bounds description. And,
7 essentially, they were ready to sell.

8 So there was not a sense of urgency,
9 but common knowledge that if we have to get this
10 recorded before we can -- I say "we" -- before
11 Mullins Brothers could begin selling. So you
12 didn't want to delay too long if you had people
13 who wanted to buy lots, which I believe they did.

14 Q. Well, is that what was driving the
15 timing, is that a developer can't sell a lot in a
16 development that is going to be a planned
17 community until the building and development
18 restrictions are on record with the recorder's
19 office?

20 A. Well, I think you can sell the lot. I
21 don't think there's anything to prohibit you from
22 selling it, but it wouldn't be subject to the
23 restrictions if they weren't on record prior to
24 the recording of the deed.

1 Q. And what's that based upon?

2 A. Well, I'm not sure I've seen any of the
3 deeds, but, normally, the deed to a purchaser
4 would make a reference to the fact that this
5 property is subject to certain conditions and
6 restrictions found in volume such-and-such, page
7 such-and-such, so that you can refer to them.

8 First in time, first in right,
9 whatever, that's the only -- I mean, if you want
10 the property to be subject to it, you either put
11 it in every deed or you record it prior to that
12 and refer to it in subsequent deeds.

13 Q. I see. Thank you. Looking back now at
14 paragraph B, the first sentence has a reference to
15 a nonprofit corporation and then names it, right?

16 A. Right.

17 Q. And then the second sentence starts
18 off, "This corporation...", right?

19 A. Yes.

20 Q. And you meant that to refer to the
21 corporation that was named in the prior sentence,
22 right?

23 A. Yeah. As I said before --

24 MS. AMADOR: Objection.

1 A. -- in the context of that paragraph,
2 that is what the term "corporation" refers to.

3 Q. All right. Now if you go to the second
4 paragraph, in the second line, there are two
5 references to the corporation, right?

6 A. Well, I'm not seeing that yet. Are we
7 in the second paragraph?

8 Q. Right. That starts, "Each lot
9 owner...."

10 A. Oh, okay. Of the corporation. Okay.
11 That reference would be, in the context of this
12 paragraph, to The Landings Common Area
13 Association, Inc.

14 Q. All right. So both of those references
15 in the first paragraph -- I'm sorry. Both of
16 those references in the first sentence of the
17 second paragraph to "the corporation" similarly
18 refer to The Landings Common Area Association,
19 Inc., right?

20 A. Yes.

21 Q. And then the second sentence of the
22 second paragraph also has a reference to "the
23 corporation." That would similarly be a reference
24 to The Landings Common Area Association, Inc.,

1 right?

2 A. Yes.

3 Q. And the next sentence also has a
4 reference to "the corporation." That would
5 similarly be a reference to The Landings Common
6 Area Association, Inc., right?

7 A. Yes.

8 Q. And then the next sentence also has a
9 reference to "the corporation," talking about
10 assessments imposed by the corporation, and that
11 would also be a reference to The Landings Common
12 Area Association, Inc., right?

13 A. Yes. In the context of that paragraph.

14 Q. And then in the final sentence where it
15 refers to initial articles of incorporation, that
16 is a reference to articles of incorporation for
17 The Landings Common Area Association, Inc.,
18 correct?

19 A. Yeah. Same answer.

20 Q. And as you've testified just a short
21 time ago, there weren't any articles of
22 incorporation attached to this document when it
23 was filed with the county recorder, correct?

24 A. That's right.

1 Q. All right. Going back to the first
2 paragraph of B. And about midway through, you'll
3 see a sentence that starts, "However...."

4 A. Yes.

5 Q. And there's a reference to holding
6 harmless. Do you see that language?

7 A. Yes, I see it.

8 Q. All right. So I'm going to ask about
9 the owner in a minute, but, first, the people who
10 are holding harmless would be the members of the
11 Waters Edge Homeowners Association and their
12 guests, right?

13 A. That is my understanding, yes.

14 Q. All right. And then as to who the
15 members of the Waters Edge Homeowners Association
16 and their guests are holding harmless, that is the
17 owner, right?

18 A. Yes.

19 Q. Now, here is the one time in these two
20 paragraphs where there is a reference to "the
21 owner" rather than "the corporation." Was "the
22 owner" intended there to be a reference to Mullins
23 Brothers?

24 A. No. Well, the owner could be Mullins

1 Brothers, since they were the owner for a while.
2 I think it would be any owner. But specifically
3 there, I think the reference would have been to
4 the corporation, which was anticipated to be the
5 owner.

6 Q. On the date that this document was
7 prepared and filed with the county recorder, the
8 owner of that property was Mullins Brothers
9 Limited, right?

10 A. That is correct.

11 Q. And no corporation existed that Mullins
12 Brothers would ultimately transfer the title to,
13 correct?

14 A. I'm sorry. I'm not sure I understood
15 that question.

16 Q. It was probably clumsy. Let me try it
17 again.

18 The corporation that you formed, The
19 Landings Property Owners Association, Inc., was
20 not set up with the Ohio Secretary of State until
21 after this declaration was filed with the county
22 recorder, correct?

23 A. Well, not to split hairs. The articles
24 were signed on the 14th. The restrictions were

1 recorded on the 22nd, but it wasn't really formed
2 until the 1st of April. So it's all right in that
3 time frame. You -- I suppose the answer to your
4 question is yes. The corporation was not yet
5 formed --

6 Q. All right.

7 A. -- because it hadn't been -- yes.
8 Therefore, the reference to the owner. And I
9 might point out, too. I think that in the future,
10 that corporation or whatever corporation or
11 whatever individual who subsequently acquired
12 ownership would be the owner. The purpose was to
13 save any owner of the lake free and harmless from
14 acts committed by owners and guests of the
15 adjoining property from use of the property.

16 MR. CHAPPELEAR: All right. Thank you.
17 Those are all the questions I have.

18 MS. AMADOR: Anyone else?

19 Hearing none, Mr. Rauzi, you've been
20 endlessly patient with us, and we definitely
21 appreciate your time. You know as an attorney you
22 have a right to read or sign or waive, and you'll
23 need to inform the court reporter of whether you
24 would like to review your deposition testimony

1 before it's finalized.

2 THE WITNESS: Okay. I presume he's
3 listening.

4 I will waive reading.

5 - - - - -

6 Thereupon, the foregoing proceedings
7 concluded at 12:32 p.m.

8 - - - - -

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1 State of Ohio : C E R T I F I C A T E
2 County of Franklin: SS

3 I, Craig Ross, RPR, CRR, a Notary Public in
4 and for the State of Ohio, do hereby certify the
5 within named Robert Rauzi was by me first duly
6 sworn to testify to the whole truth in the cause
7 aforesaid; testimony then given was by me reduced
8 to stenotypy in the presence of said witness,
9 afterwards transcribed by me; the foregoing is a
10 true record of the testimony so given; and this
11 deposition was taken at the time and place as
12 specified on the title page.

13 I do further certify I am not a relative,
14 employee or attorney of any of the parties hereto,
15 and further I am not a relative or employee of any
16 attorney or counsel employed by the parties
17 hereto, or financially interested in the action.

18 IN WITNESS WHEREOF, I have hereunto set my
19 hand and affixed my seal of office at Columbus,
20 Ohio, on September 15, 2023.

21 

22 Craig Ross, RPR, CRR, Notary Public-State of Ohio
23 My commission expires July 7, 2026.
24

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